

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
CHRISTOPHER LAZALA AND JOSE SANCHEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DET. JODI BROWN OF
NARCB BX, SHIELD #4057, NYPD UNDERCOVER
OFFICER ON ARREST #B14636196, SHIELD #0119
N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER
ON SAID ARREST N/H/A JOHN/JANE DOE II, THE
SUPERVISING SERGEANT ON SAID ARREST N/H.A
JOHN/JANE DOE III,

Defendants.
----- X

Index No. Purchased

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is where
the tort arose and where
plaintiff(s) reside

SUMMONS

Plaintiff(s) resides at

Christopher Lazala
883 Fairmount Place
Bronx, NY 10460

Jose Sanchez
807 Elsmere Place
Bronx, NY 10460

2015 SEP 22 PM 2:27
COUNTY CLERK
BRONX COUNTY

RECEIVED

TO THE ABOVE NAMED DEFENDANT(S):

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
September 17, 2015



JOHN R. DEPAOLA & ASSOCIATES PLLC

Attorneys for Plaintiffs

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-4000

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

DET. JODI BROWN OF NARCBBX

Shield #4057, Tax Reg # 936246

One Police Plaza

New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X		
CHRISTOPHER LAZALA AND JOSE SANCHEZ,	:	Index No. Purchased
	:	
Plaintiffs,	:	
	:	
	:	
-against-	:	VERIFIED COMPLAINT
	:	
THE CITY OF NEW YORK, DET. JODI BROWN OF	:	
NARCB BX, SHIELD #4057, NYPD UNDERCOVER	:	
OFFICER ON ARREST #B14636196, SHIELD #0119	:	
N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER	:	
ON SAID ARREST N/H/A JOHN/JANE DOE II, THE	:	
SUPERVISING SERGEANT ON SAID ARREST N/H.A	:	
JOHN/JANE DOE III,	:	
	:	
Defendants.	:	
-----X		

CHRISTOPHER LAZALA AND JOSE SANCHEZ, by their attorneys, **JOHN R. DEPAOLA & ASSOCIATES PLLC**, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **CHRISTOPHER LAZALA** was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the October 23, 2014 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally,

which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff **CHRISTOPHER LAZALA** has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **DET. JODI BROWN OF NARCB BX, SHIELD #4057, NYPD UNDERCOVER OFFICER ON ARREST #B14636196, SHIELD #0119 N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER ON SAID ARREST N/H/A JOHN/JANE DOE II, THE SUPERVISING SERGEANT ON SAID ARREST N/H.A JOHN/JANE DOE III**, were and are police officers of the Defendant **CITY OF NEW YORK**, and at all times herein were acting in such capacity as its agents, servants and employees.
7. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **CHRISTOPHER**

LAZALA, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs“1”through“7”with full force and effect as though set forth at length herein.
9. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **CHRISTOPHER LAZALA** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs“1”through“9”with full force and effect as though set forth at length herein.
11. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, jointly and severally without any warrant, order or other legal process and without any

legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2014BX027187. The Plaintiff was thereafter held in custody over the course of approximately three (3) days or approximately forty-eight (48) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "F" through "I" with full force and effect as though set forth at length herein.
13. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, the Defendants jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately three (3) days or approximately forty-eight (48) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about May 21, 2014 and from that time until the dismissal of charges on or about August 25, 2014, which was a favorable termination for the accused by the Honorable Judge Montano, presiding at the Criminal Court of the City of New York, Bronx County, Defendants **CITY OF NEW YORK** deliberately and maliciously prosecuted Plaintiff **CHRISTOPHER LAZALA**, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2014BX027187 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust

criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "I" through "18" with full force and effect as though set forth at length herein.
20. Defendants **DET. JODI BROWN OF NARCBX, SHIELD #4057, NYPD UNDERCOVER OFFICER ON ARREST #B14636196, SHIELD #0119 N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER ON SAID ARREST N/H/A JOHN/JANE DOE II, THE SUPERVISING SERGEANT ON SAID ARREST N/H/A JOHN/JANE DOE III**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
22. Plaintiff **CHRISTOPHER LAZALA** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about May 21, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff **CHRISTOPHER LAZALA**, did search, seize, assault and

commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. freedom from assault to his person;
- b. freedom from battery to his person;
- c. freedom from illegal search and seizure;
- d. freedom from false arrest;
- e. freedom from malicious prosecution;
- f. freedom from the use of excessive force during the arrest process;
- g. freedom from unlawful imprisonment; and
- h. freedom from loss of his liberty.

26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. Defendant **CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
31. Defendant **CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
 - a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;

- b. excessive force cannot be used against an individual who does not physically resist arrest; and
 - c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
32. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.
34. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants **DET. JODI BROWN OF NARCB BX, SHIELD #4057, NYPD UNDERCOVER OFFICER ON ARREST #B14636196, SHIELD #0119 N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER ON SAID ARREST N/H/A JOHN/JANE DOE II, THE SUPERVISING SERGEANT ON SAID ARREST N/H.A JOHN/JANE DOE III**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the

Defendant **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A NINTH CAUSE OF ACTION

35. At all times mentioned, Plaintiff **JOSE SANCHEZ** was a resident of New York County, City and State of New York.
36. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
37. On or about the October 23, 2014 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
38. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
39. The Plaintiff **JOSE SANCHEZ** has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General

Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

40. Upon information and belief, at all times mentioned, Defendants **DET. JODI BROWN OF NARCBBX, SHIELD #4057, NYPD UNDERCOVER OFFICER ON ARREST #B14636196, SHIELD #0119 N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER ON SAID ARREST N/H/A JOHN/JANE DOE II, THE SUPERVISING SERGEANT ON SAID ARREST N/H.A JOHN/JANE DOE III**, were and are police officers of the Defendant **CITY OF NEW YORK**, and at all times herein were acting in such capacity as its agents, servants and employees.
41. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JOSE SANCHEZ**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A TENTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "T" through "4T" with full force and effect as though set forth at length herein.

43. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **JOSE SANCHEZ** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

44. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "43" with full force and effect as though set forth at length herein.
45. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2014BX027188. The Plaintiff was thereafter held in custody over the course of approximately three (3) days or approximately forty-eight (48) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A TWELFTH CAUSE OF ACTION

46. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "T" through "45" with full force and effect as though set forth at length herein.
47. On or about May 21, 2014, at approximately 3:50 P.M. in the vicinity of the inside of 1971 Marmion Avenue, County of Bronx, State of New York, the Defendants jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately three (3) days or approximately forty-eight (48) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

48. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "T" through "47" with full force and effect as though set forth at length herein.
49. Upon information and belief, on or about May 21, 2014 and from that time until the dismissal of charges on or about August 25, 2014, which was a favorable termination for the accused by the Honorable Judge Montano presiding at the Criminal Court of the City of New York, Bronx County, Defendants **CITY OF**

NEW YORK deliberately and maliciously prosecuted Plaintiff **JOSE**

SANCHEZ, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

50. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
51. The commencement of these criminal proceedings under Docket No. 2014BX027188 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
52. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

53. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "52" with full force and effect as though set forth at length herein.
54. Defendants **DET. JODI BROWN OF NARCB BX, SHIELD #4057, NYPD UNDERCOVER OFFICER ON ARREST #B14636196, SHIELD #0119**

**N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER ON SAID
ARREST N/H/A JOHN/JANE DOE II, THE SUPERVISING SERGEANT
ON SAID ARREST N/H.A JOHN/JANE DOE III,** were at all times relevant,
duly appointed and acting officers of the City of New York Police Department.

55. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
56. Plaintiff **JOSE SANCHEZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
57. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
58. On or about May 21, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff **JOSE SANCHEZ**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.
59. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. freedom from assault to his person;

- b. freedom from battery to his person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from malicious prosecution;
 - f. freedom from the use of excessive force during the arrest process;
 - g. freedom from unlawful imprisonment; and
 - h. freedom from loss of his liberty.
60. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiffs' rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
61. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A FIFTEENTH CAUSE OF ACTION

62. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "61" with full force and effect as though set forth at length herein.
63. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use

reasonable force to effectuate an arrest and the arrest should be based on probable cause.

64. Defendant **CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
65. Defendant **CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
 - a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
 - b. excessive force cannot be used against an individual who does not physically resist arrest; and
 - c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
66. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, and denied him prompt medical attention

under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SIXTEENTH CAUSE OF ACTION

67. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "66" as it set forth at length herein.

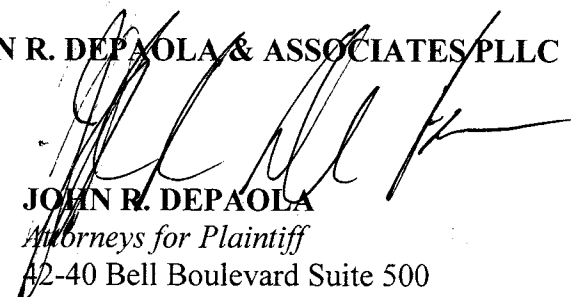
68. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants **DET. JODI BROWN OF NARCBX, SHIELD #4057, NYPD UNDERCOVER OFFICER ON ARREST #B14636196, SHIELD #0119 N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER ON SAID ARREST N/H/A JOHN/JANE DOE II, THE SUPERVISING SERGEANT ON SAID ARREST N/H/A JOHN/JANE DOE III**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
September 17, 2015

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: JOHN R. DEPAOLA
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
CHRISTOPHER LAZALA AND JOSE SANCHEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DET. JODI BROWN OF
NARCB BX, SHIELD #4057, NYPD UNDERCOVER
OFFICER ON ARREST #B14636196, SHIELD #0119
N/H/A JOHN/JANE DOE I, DET. BROWN'S PARTNER:
ON SAID ARREST N/H/A JOHN/JANE DOE II, THE
SUPERVISING SERGEANT ON SAID ARREST
N/H/A JOHN/JANE DOE III,

Defendants.
----- X

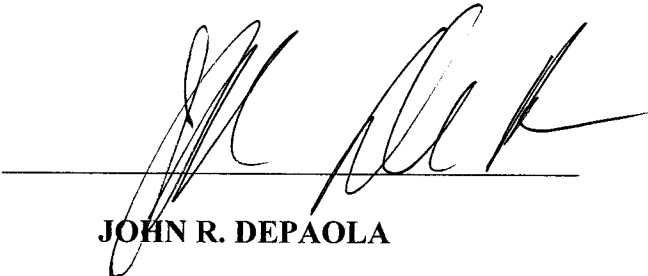
Index No. Purchased

VERIFICATION

I, **JOHN R. DEPAOLA**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **JOHN R. DEPAOLA & ASSOCIATES PLLC**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
September 17, 2015



JOHN R. DEPAOLA

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CHRISTOPHER LAZALA AND JOSE SANCHEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DET. JODI BROWN OF NARCB BX, SHIELD #4057, NYPD
UNDERCOVER OFFICER ON ARREST #B14636196, SHIELD #0119 N/H/A JOHN/JANE
DOE I, DET. BROWN'S PARTNER ON SAID ARREST N/H/A JOHN/JANE DOE II, THE
SUPERVISING SERGEANT ON SAID ARREST N/H.A JOHN/JANE DOE III,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for